

9. **S-CV-0050894 Kaur, Jasneet v. Singh, Malwinder**

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Adjudicate and Enforce Attorney's Charging Lien

Attorneys Real Estate Group, APC ("AREG"), former counsel for defendant Malwinder Singh, moves the court for an order adjudicating and enforcing its attorney's charging lien in the amount of \$63,208.80. Defendant Singh opposes the motion.

AREG presents evidence it entered into a written engagement agreement with defendant on September 12, 2022 and that the agreement included a charging lien agreement. AREG presents evidence defendant had payment lapses in 2024 and made only three payments in 2025 and currently owes them \$63,208.80. AREG filed a notice of lien for attorney's fees in this action on December 5, 2025. For clarity, AREG is not a party to this action.

In support of its motion, AREG cites to *Carroll v. Interstate Brands Corp.* (2002) 99 Cal.App.4th 1168 for the proposition that a charging lien may be adjudicated and enforced by motion in the underlying action once there is recovery. However, this is not the holding of the *Carroll* court. The *Carroll* court provides that the court in the underlying action has no jurisdiction to determine the existence or validity of an attorney's lien and the court acts in excess of its jurisdiction if it purports to do so. Under *Carroll* and other applicable authority, this court has no jurisdiction over a fee dispute involving an agreement between a party in the action and the attorney to that party and such a contractual lien must be enforced in an independent action. (*Law Offices of Stanley J. Bell v. Shine, Browne & Diamond* (1995) 36 Cal.App.4th 1011, 1019–20.) Also, "the practice of filing a notice of lien in a pending action is permissible, and even advisable. . . . However, . . . an independent action is required to establish the existence and the amount of the lien and to enforce it. [Citation.]" (*Valenta v. Regents of Univ. of Cal.* (1991) 231 Cal.App.3d 1465, 1470.) Based on the foregoing, the motion is denied.

Defendant also argues the attorney lien is unenforceable for a number of reasons. However, as this court lacks jurisdiction to consider the validity and enforceability of the lien, this court in this action cannot and does not comment on the enforceability of the lien.

Defendant's request for attorneys' fees pursuant to Code of Civil Procedure section 128.5 is denied because the request is not brought by separately noticed motion nor does it comply with the safe-harbor provision.

Defendant's request to expunge the lien is denied without prejudice as the issue is not properly before this court. (*Valenta v. Regents of Univ. of Cal.*, *supra*, 231 Cal.App.3d at p. 1470.)